

Fly GACA — Privacy Notice (Full Platform Stage)

SECTION 02-legal

TYPE legal

STATUS

draft

OWNER Founder

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Version: Draft 1.0 — 2026-06-14**Replaces:** Pre-account draft in `flygaca/privacy.html` (effective when user accounts go live)**Language:** English (master). Arabic translation required before account launch per PDPL best practice.**Contact:** privacy@flygaca.com

⚠️ LAWYER-REVIEW REQUIRED — NOT LEGAL ADVICE

This document is a working draft prepared by an AI assistant for founder review. It is **not** legal advice and has **not** been reviewed by a Saudi-licensed lawyer. It must be reviewed and approved by qualified Saudi legal counsel (with expertise in KSA PDPL, SDAIA implementing regulations, and the Communications, Space & Technology Commission / CITC frameworks) **before** it is published or relied upon. Do not publish this notice until that review is complete.

Relevant KSA instruments this draft is intended to align with: Personal Data Protection Law (Royal Decree M/19, 1443H / 2021, effective 14 Rabi' al-Awwal 1444H / 17 September 2023); SDAIA Implementing Regulations; CITC guidelines on electronic services; Saudi E-Commerce Law (Royal Decree M/126, 1440H / 2019).

مقدمة | Introduction

سنوفر ترجمة عربية كاملة قبل إطلاق Fly GACA بالعربية: يُعدّ هذا الإشعار هو الإصدار الرسمي لسياسة الخصوصية لمنصة. الحسابات رسمياً. للاستفسارات بالعربية، تواصل معنا على privacy@flygaca.com

1. Who We Are

Fly GACA ("we", "us", "our") is an independent educational reference platform for Saudi civil aviation, operated by BDA Company International (شركة بدع الدولية), CR 7030976893, Riyadh, Kingdom of Saudi Arabia.

We are not affiliated with, endorsed by, or connected to the General Authority of Civil Aviation (GACA) or the Government of Saudi Arabia. Fly GACA is a private educational service only. See our [Disclaimer](#) for the full independence statement.

Data Controller contact:

privacy@flygaca.com

Fly GACA | flygaca.com | Kingdom of Saudi Arabia

2. Scope of This Notice

This notice covers all personal data processed through:

- The Fly GACA website at **flygaca.com** and associated sub-domains
- The Fly GACA Progressive Web App (PWA) and Android application
- The **Captain Adel** AI study assistant
- The **Fly GACA Library** (search and document-reader)
- Fly GACA **user accounts** (individual Pro tier and Academy/cadet accounts)
- B2B **Academy dashboard** features (flight school and academy operator access)
- The waitlist and marketing communications

This notice does **not** cover data processed by GACA or other government websites that we link to.

3. What Personal Data We Collect and Why

3.1 Account Registration

Data	Purpose	Lawful Basis (PDPL)
Email address	Account creation, login, service communications	Contract (Art. 6)
Password (hashed — we never store plaintext)	Authentication	Contract
Display name (optional)	Personalisation	Consent
GACA licence/student number (optional, user-provided)	Licence-track features; verification display	Contract / Consent
Preferred language (EN/AR)	Service delivery	Contract

3.2 Subscription and Payment

Data	Purpose	Lawful Basis
Payment card data	NOT stored by Fly GACA — processed and tokenised by Moyasar (our licensed Saudi payment gateway)	Contract
Transaction reference, amount, plan type, date	Billing records, ZATCA VAT compliance	Contract / Legal obligation (VAT, 7-year retention)

Data	Purpose	Lawful Basis
Invoice details (name / entity, VAT number if applicable)	ZATCA Fatoora e-invoicing	Legal obligation

3.3 Platform Usage (Library and Documents)

Data	Purpose	Lawful Basis
Documents viewed, bookmarked, highlighted	Personal study record; progress features	Contract
Search queries (non-AI)	Search result delivery; search quality improvement	Contract / Legitimate interest
Exam practice scores and session history	Progress tracking; instructor dashboard (Academy tier)	Contract

3.4 Captain Adel AI Study Assistant

Data	Purpose	Lawful Basis	Retention
Chat queries submitted to Captain Adel	AI response generation	Contract	90 days rolling
AI response text and source citations	Quality evaluation; session continuity; user review	Contract / Legitimate interest	90 days rolling
Conversation session metadata (timestamp, model version)	Quality assurance; incident investigation	Legitimate interest	90 days rolling

Important — what Captain Adel does NOT do:

- Captain Adel does not store, reproduce, or transmit content from ICAO Annexes or aircraft manuals.
- Captain Adel's responses are educational study aids only. They are not authoritative regulatory rulings. Never use them for operational flight decisions.
- We advise users not to include personal identifiers (full name, national ID, passport number, medical details) in chat queries. If such data is inadvertently submitted, it is handled under this notice but is not required and should not be included.

3.5 Academy / B2B Operator Data

Data	Purpose	Lawful Basis
Academy name, contact email, authorised administrator details	B2B account management	Contract
Cadet roster (provided by Academy operator)	Seat provisioning; dashboard	Contract (with Academy as separate data controller for cadet data — see §9)
Academy usage analytics (aggregate)	Service reporting; weekly dashboard	Contract

3.6 Technical and Security Data

Data	Purpose	Lawful Basis	Retention
IP address, browser/device type, OS	Security; abuse prevention; server logs	Legitimate interest	30 days
Session token (a signed JSON Web Token held in an HttpOnly cookie, issued by our own backend)	Session management	Contract	Session duration (up to 30 days)
Crash and error reports	Bug fixing; service reliability	Legitimate interest	30 days

3.7 Analytics

We use **Cloudflare Web Analytics** for site-wide usage statistics. This tool is privacy-first and cookieless: it does not set tracking cookies, does not fingerprint your device, does not identify you personally, and does not track you across other websites. It records only aggregate, anonymous data (page views, referral source, broad geographic region). No personal data is processed through this tool.

We do not use Google Analytics or any advertising analytics platform. [Note for lawyer / owner: the analytics description in this section could not be reconciled against the shipped platform and must be confirmed before publication — the sentence describing Firebase Analytics has been removed because there is no Firebase in the platform, but what (if anything) replaces it for in-app behaviour has not been settled.]

3.8 Communications and Waitlist

Data	Purpose	Lawful Basis
Email address (waitlist)	Notify you when Captain Adel / a feature becomes available	Consent
Email address (marketing opt-in)	Product news, updates	Consent
Support ticket content	Resolving your request	Contract / Legitimate interest

4. Lawful Bases Under Saudi PDPL

The PDPL (Art. 6) requires that processing of personal data rests on a lawful basis. We process personal data on the following bases:

Basis	When we rely on it
Contract	Delivering the Platform, managing your account, processing payment, providing Captain Adel

Basis	When we rely on it
Legal obligation	ZATCA VAT records (7-year retention); SDAIA regulatory requirements; lawful authority requests
Legitimate interest	Platform security; fraud prevention; abuse detection; product analytics (aggregate, privacy-minimal) — in each case balanced against your interests
Consent	Marketing communications; optional analytics opt-in; waitlist; optional profile data (display name, GACA licence number)

You may withdraw consent at any time without affecting the lawfulness of processing before withdrawal. To withdraw consent or manage preferences: privacy@flygaca.com or in-app account settings.

5. How We Store and Protect Your Data

5.1 Location — KSA-First Infrastructure

Personal data is stored **within the Kingdom of Saudi Arabia**:

- **Google Cloud SQL (PostgreSQL)** — `me-central2` region (Dammam, KSA): all primary data storage, AI query logs, user accounts
- **Google Cloud Run** — `me-central2` (Dammam, KSA): the application and API, including the Captain Adel gateway
- **Google Cloud Storage** — static assets (no personal data), served behind an HTTPS load balancer
- **Google Gemini (via Genkit)** — AI inference for Captain Adel [Note for lawyer / owner: inference runs against the Google Gemini API with an API key, **not** on our own `me-central2` infrastructure. The processing region for that inference has not been confirmed and this notice must not be published claiming in-Kingdom AI inference until it is.]
- **Moyasar** — KSA-registered payment processor: payment data stays in KSA

We designed the platform so that personal data stays inside the Kingdom. Any processing outside the Kingdom is limited to technical infrastructure that processes only public, non-personal data (e.g., Cloudflare CDN for static assets).

5.2 Security Measures

- All data in transit is encrypted (TLS 1.2+)
- All data at rest is encrypted (AES-256 via Google Cloud)
- Server-side authorisation restricts each user's data to their own authenticated session — every request is checked against the session token before any record is returned, and you cannot access another user's data

- Admin access is restricted to the founder via Identity-Aware Proxy (IAP) and two-factor authentication
- Payment card data is never transmitted to or stored by Fly GACA — Moyasar handles all card processing under PCI-DSS
- We conduct periodic security reviews; penetration testing is planned before Series A

Despite these measures, no online service is 100% secure. In the event of a breach likely to cause serious harm, we will notify SDAIA within 72 hours (PDPL Art. 20) and affected users without undue delay.

6. How Long We Keep Your Data

Data type	Retention period	Basis
Account data (name, email, settings)	Life of account + 1 year after deletion	Contract / Legitimate interest
GACA licence number	Life of account	Contract / Consent
Captain Adel chat queries and responses	90 days rolling	Contract / Legitimate interest
Exam scores and progress data	Life of account + 2 years	Contract
Payment transaction records	7 years from invoice date	Legal obligation (ZATCA)
Server/security logs	30 days	Legitimate interest
Waitlist email	Until launch notification sent, or until deletion requested	Consent
Marketing opt-in	Until consent withdrawn	Consent

When your account is deleted, all personal data linked to it is permanently deleted from active systems. Anonymised aggregate data (e.g., platform usage statistics with no link to any individual) may be retained indefinitely. Transactional records required for tax are retained for the legal period.

7. Sharing Your Data

We do **not** sell your personal data. We do **not** share it for advertising or marketing by third parties.

We share data only with:

Recipient	Purpose	Location	Legal basis
Google Cloud (Cloud Run, Cloud SQL, Cloud Storage)	Hosting, authentication, database	KSA (me-central2, Dammam)	Contract (processor); Google DPA signed
Google Gemini (via Genkit)	AI inference for Captain Adel	[region to be confirmed — see §5.1]	Contract (processor); [confirm which Google terms / DPA cover the Gemini API — the Google Cloud DPA above may not]
Moyasar	Payment processing	KSA	Contract (processor); Moyasar DPA in place
Cloudflare	CDN, Web Analytics (aggregate, cookieless only — no personal data)	Global (static assets only; analytics = no PII)	Legitimate interest
Academy operators (B2B only)	Academy operators can view usage data for their own provisioned cadets only	KSA	Contract (see §9)
Competent KSA authorities	Where required by Saudi law, court order, or regulatory request	KSA	Legal obligation

Any future sub-processor (e.g., analytics, customer support) will be added to our sub-processor register and to this notice before onboarding, and must meet KSA data-residency requirements or SDAIA-recognised standards.

8. Cookies and Tracking

What we use

Technology	Purpose	Personal data?	Consent required?
Fly GACA session token (a signed JSON Web Token in an HttpOnly cookie)	Keep you logged in to your account	Yes (session identity)	Not required — essential to service
Language preference (localStorage)	Remember your EN/AR choice	No	Not required — functional
Cloudflare Web Analytics	Aggregate site usage (cookieless, no fingerprinting)	No	Not required

We do **not** use:

- Advertising or retargeting cookies
- Cross-site tracking pixels or beacons

- Google Analytics or Facebook Pixel
- Any third-party analytics that processes personal data

If we introduce any new cookie or tracking technology, we will update this notice and, where required by PDPL, obtain your prior consent via a clear consent mechanism before that technology is deployed.

9. Academy Accounts — Separate Data-Controller Notice

If you are an **Academy operator** (flight school, training organisation) using the Fly GACA Academy tier:

- You are the **data controller** for personal data of your cadets (names, GACA student numbers, exam records).
- Fly GACA is the **data processor** processing that data on your behalf.
- Before provisioning cadet seats, Academy operators must sign a **Data Processing Agreement (DPA)** with Fly GACA. The DPA sets out processing instructions, security obligations, breach notification, and data-subject rights assistance.
- Academy operators are responsible for providing their cadets with appropriate privacy notices about the use of Fly GACA.

If you are a **cadet** whose Academy has provisioned a Fly GACA account for you, your Academy is the primary contact for data-rights requests. You may also contact us directly at privacy@flygaca.com.

10. Your Rights Under the PDPL

Under the Saudi Personal Data Protection Law (PDPL), you have the following rights:

Right	What it means	How to exercise
Right to be informed	Know what data we hold and why	This notice
Right of access	Receive a copy of your personal data	privacy@flygaca.com — we respond within 30 days
Right to rectification	Correct inaccurate data	In-app settings, or email privacy@flygaca.com
Right to erasure	Request deletion of your data	Account deletion in Settings (wipes all PII) or email privacy@flygaca.com
Right to restriction	Ask us to pause processing while a dispute is resolved	privacy@flygaca.com
Right to data portability	Receive your data in a structured, machine-readable format	privacy@flygaca.com — JSON export within 30 days

Right	What it means	How to exercise
Right to object	Object to processing based on legitimate interest	privacy@flygaca.com
Right regarding automated decisions	Request human review of any Captain Adel assessment	privacy@flygaca.com — human review available on request
Right to withdraw consent	Withdraw consent at any time	In-app settings or privacy@flygaca.com

Response time: We will acknowledge rights requests within 5 business days and fulfil them within 30 calendar days (PDPL Art. 7–12). Complex requests may take up to 60 days; we will notify you if this applies.

Complaints: If you are dissatisfied with our response, you have the right to lodge a complaint with SDAIA (the Saudi Data & AI Authority), the KSA supervisory authority for PDPL: sdaia.gov.sa.

11. Children

The Fly GACA platform is designed for pilots, cadets, flight instructors, and aviation professionals. We do not knowingly collect personal data from individuals under the age of 18 (or any higher age of majority applicable under KSA law for specific data types). If you believe a minor's data has been submitted to us without appropriate consent, contact privacy@flygaca.com and we will delete it promptly.

12. Changes to This Notice

We will update this notice as the platform develops (for example, when new features, AI capabilities, or sub-processors are added). Material changes will be notified:

- For **account holders**: by email to the address on your account at least 14 days before the change takes effect
- For **anonymous visitors**: by updating this notice and posting a change notice on the website

The "Version" at the top of this notice and the changelog below record each revision. Continued use of the platform after a notified change constitutes acceptance.

Changelog

Version	Date	Summary of changes
Draft 1.0	2026-06-14	Initial full-stage draft for legal review. Covers accounts, AI, Academy tier, B2B DPA requirement. Replaces pre-account draft in <code>privacy.html</code> .

13. Contact Us

For any question about this notice, to exercise your data rights, or to report a concern:

Data Protection contact: privacy@flygaca.com

General contact: i@flygaca.com

Website: flygaca.com

Postal / registered address: [to be confirmed upon entity incorporation — KSA]

Draft 1.0 — 2026-06-14. This document must be reviewed by a qualified Saudi-licensed lawyer specialising in PDPL and KSA data protection before publication. It is a business working draft only and does not constitute legal advice.

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